

Permissions and Waivers

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to every _firm_.

1.2

In this Part, the following definitions shall apply:

_requirement _

means a requirement imposed by the _PRA_ on a _firm_ under section 55M of _FSMA_ (Imposition of requirements by PRA).

2

Applications to Vary and Cancel Part 4A Permission

2.1

This Chapter applies to every _firm_ that wishes to:

1. (1) vary its _Part 4A permission_ ; or
2. (2) cancel its _Part 4A permission_.

2.2

The _PRA_ directs that a _firm_ other than a _credit union_ wishing to make an application to vary or cancel a _Part 4A permission_ apply online using the form specified on the _ONA system_ , unless otherwise advised by the _PRA_.

2.3

Where the _ONA system_ fails and is unavailable for 24 hours or more, the _PRA_ directs that a _firm_ which is required to make an application in the manner set out in 2.2 make the application by using the relevant form on the _PRA?s_ website and submit it using one of the alternative ways set out in Notifications 7.4.

2.4

The _PRA_ directs that a _credit union_ wishing to make an application to vary or cancel a _Part 4A permission_ submit the relevant form on the _PRA?s_ website using one of the alternative ways set out in Notifications 7.4.

2.5

Where a _firm_ has applied for cancellation of its _Part 4A permission_ , it must demonstrate to the _PRA_ that it has ceased or will cease carrying on all _regulated activities_.

3

Applications to Impose, Vary and Cancel Requirements

3.1

This Chapter applies to every _firm_ that wishes to:

1. (1) have a new _requirement_ imposed on it; or
2. (2) vary a _requirement_ imposed on it; or
3. (3) cancel a _requirement_ imposed on it.

3.2

The _PRA_ directs that a _firm_ other than a _credit union_ wishing to make an application to impose, vary or cancel a _requirement_ apply online using the form specified on the _ONA system_ , unless otherwise advised by the _PRA_.

3.3

Where the _ONA system_ fails and is unavailable for 24 hours or more, the _PRA_ directs that a _firm_ which is required to make an application under 3.2 make the application by using the relevant form on the _PRA?s_ website and submit it using one of the alternative ways set out in Notifications 7.4.

3.4

The _PRA_ directs that a _credit union_ wishing to make an application to impose, vary or cancel a _requirement_ submit the relevant form on the _PRA?s_ website using one of the alternative ways set out in Notifications 7.4.

4

Waiver and Modification of Rules

4.1

This Chapter applies to every _firm_ or _person_ who is subject to _PRA rules_.

4.2

The _PRA_ directs that a _firm_ or _person_ wishing to apply for a _waiver_ must complete the relevant form on the _PRA?s_ website and submit it in the way set out in Notifications 7.4 unless otherwise advised by the _PRA_.

5

Changes to Information, Additional Information and Notification of Altered Circumstances

5.1

Until an application under this Part has been determined, a _firm_ or _person_ who submits the application must immediately notify the _PRA_ of any significant change to the information provided in the application.

5.2

A _firm_ or _person_ which has applied for or has been granted a _waiver_ must immediately notify the _PRA_ if it becomes aware of any matter which could affect the continuing relevance or appropriateness of the application of the _waiver_.